

Ramvir v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 21 March 2023 · WRIT - C No. - 13395 of 2011 · **Writ dismissed for want of prosecution; theft-assessment recovery not decided.**

HEADNOTE

Writ challenging recovery of an alleged theft-of-electricity assessment, said to have been made without complying with the mandatory requirements of the U.P. Electricity Supply Code, 2005, was kept pending from March 2011. The Court called for the raid/checking seizure report and for instructions on whether a provisional assessment had been made, served, objected to and decided, and whether a final assessment had issued. The licensee produced no such instructions. Notice was issued pending admission, and recovery on the citation dated 5 February 2011 was stayed subject to a without-prejudice deposit of Rs 1,15,000. On 21 March 2023 none appeared for the petitioner even in the revised call. The writ was dismissed for want of prosecution. The Court did not decide whether the Code's theft-assessment procedure had been followed, or the validity of the citation.

FACTUAL SUMMARY

Ramvir filed Writ-C No. 13395 of 2011 against the State of U.P. and others (the electricity corporation appearing as respondents 3 and 4), challenging recovery on a citation dated 5 February 2011 for an assessment said to rest on alleged theft of electricity. He contended that the mandatory requirements of the U.P. Electricity Supply Code, 2005 had not been complied with. At the first listing the licensee's counsel was permitted to produce the checking/raid seizure report. On 5 April 2011 the Court listed six queries: whether a provisional assessment had been made, served and objected to; whether objections had been decided and that order communicated; and whether a final assessment had issued. After further adjournments for instructions that never arrived, the Court on 27 April 2011 issued notice pending admission and stayed recovery on the citation, provided the petitioner deposited Rs 1,15,000 within four weeks without prejudice. On 21 March 2023 none appeared for the petitioner even in the revised call, and the writ was dismissed for want of prosecution.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

theft-assessment recovery citation; writ dismissed for want of prosecution

QUESTION

Whether recovery on a theft-assessment citation may proceed, and whether the writ challenging it should be decided, when none appears for the petitioner even in the revised call?

HOLDING

On 5 April 2011 the Court called for instructions on whether a provisional assessment had been made, served, objected to and decided, and whether a final assessment had issued. The licensee produced none. On 27 April 2011, recording the petitioner's case that recovery for alleged theft of electricity had been initiated without complying with the mandatory requirements of the U.P. Electricity Supply Code, 2005, the Court issued notice pending admission and stayed recovery on the citation dated 5 February 2011 provided the petitioner deposited Rs 1,15,000 within four weeks without prejudice. On 21 March 2023 none appeared for the petitioner even in the revised call, and the writ was dismissed for want of prosecution. Those Code questions and the citation were not decided. ¶ [orders of 5.4.2011](#), [27.4.2011](#) and [21.3.2023](#)

FLAG Order-sheet of seven listings (7.3.2011–21.3.2023). Coram is the disposing bench of 21.3.2023 (Manoj Kumar Gupta and Prashant Kumar, JJ.). The Court never numbered a Code clause; the petitioner invoked the Code generally for alleged theft of electricity. Keyed to Clause 8.1 as the theft-assessment procedure the 5.4.2011 queries match. The 27.4.2011 stay was interlocutory.

PRINCIPLE TAGS

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance Writ challenging recovery on a 5.2.2011 citation for an alleged theft assessment, kept pending after the Court asked whether provisional and final assessments under the Supply Code

had been made and served, was dismissed for want of prosecution when none appeared even in the revised call; the citation and Code procedure were not decided. ¶ [order of 21.3.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RECOVERY ON THE CITATION DATED 5 FEBRUARY 2011 FOR AN ALLEGED THEFT ASSESSMENT COMPLIED WITH THE MANDATORY REQUIREMENTS OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Petitioner's case on 27.4.2011; not decided. ¶ [order of 27.4.2011](#)

NOT DECIDED — WHETHER A PROVISIONAL ASSESSMENT WAS MADE, SERVED, OBJECTED TO AND DECIDED, AND WHETHER A FINAL ASSESSMENT ORDER WAS ISSUED

Six queries listed on 5.4.2011; the licensee never produced instructions; left unanswered. ¶ [order of 5.4.2011](#)

NOT DECIDED — VALIDITY OR QUANTUM OF THE THEFT ASSESSMENT AND OF THE CITATION DATED 5 FEBRUARY 2011

The 27.4.2011 stay was interlocutory and without prejudice; the petition was later dismissed for want of prosecution.

¶ [orders of 27.4.2011](#) and [21.3.2023](#)